

Leof. Kifisias 1-3, 11523 Athens

T: 210 6475 600 • E: [contact@dpa.gr](mailto:contact@dpa.gr) • [www.dpa.gr](http://www.dpa.gr)

Athens, 10-03-2025

Protocol No.: 849

DECISION 12/2025

The Hellenic Data Protection Authority convened following an invitation from the President for a meeting via teleconference on Tuesday, January 14, 2025, at 10:00, postponed from December 17, 2024, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Aikaterini Iliadou, as rapporteur, and Grigorios Tsolias. Also present was Georgios Kontis, an alternate member of the Authority, replacing the regular member Christos Kalloniatis, who, although duly summoned, did not attend due to a conflict. Present, without voting rights, were Charikleia Latsiou, legal auditor - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the document No. ... (and with protocol No. APD G/EIS/8144/24.10.2024), the Ministry of Justice forwarded to the Authority the documents No. ... and ... from the Court of First Instance of Edessa and the Administrative Court of Appeal of Thessaloniki, respectively, and requests from the latter an update on the posed questions, in order to subsequently inform all judicial authorities of the country regarding the provision by them of access to data concerning payment orders, eviction orders, as well as decisions on bankruptcy/settlement/restructuring applications by the lawyers - partners of the company TEIRESIAS S.A.

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Specifically, with the aforementioned documents No. ... and ..., the Court of First Instance of Edessa and the Administrative Court of Appeal of Thessaloniki, respectively, request from the Ministry, in light of relevant requests from the company TEIRESIAS S.A. and its partner lawyers, to inform them whether the document No. ... remains in effect. With the aforementioned document, the Ministry calls upon the Heads of the Courts of First Instance of the country "to ensure unobstructed access to the services of the lawyers, who on behalf of TEIRESIAS S.A. collect information for the purpose of managing and continuously updating the credit information file, in order to achieve the completeness of the collected data." Furthermore, in the aforementioned document of the Ministry, reference is made to decision No. 109/99 and documents No. 1350/01 and 2889/03 of the Authority.

The issue of the (legality of) access and collection of adverse financial data of data subjects (natural persons) directly from the source (i.e., the competent local courts) without their consent by lawyers - partners of the company TEIRESIAS S.A. is once again brought before the Authority. Similar requests with the same content had been submitted to the Authority earlier in the same year (2024) by the company TEIRESIAS S.A. and the Court of First Instance of Edessa. The Authority, during the examination of the aforementioned requests, with documents No. G/EKSE/897/19.03.2024 and G/EKSE/904/19.03.2024 addressed to the Court of First Instance of Edessa and the company TEIRESIAS S.A., respectively, found on the one hand that the documents No. 1350/2001 and 2889/2003 of the Authority<sup>1</sup> have not been revoked or amended following the entry into force of the GDPR, and on the other hand that the provisions of decisions No. 109/31-03-1999, 523/19-10-1999, 24/2004, and 25/2004<sup>2</sup>, in which it was determined that the processing (collection and retention) of adverse financial behavior data by TEIRESIAS S.A. is permitted even without the consent of the data subjects due to the overriding legitimate interest of the aforementioned company, remain in effect. Moreover, the Authority, with the aforementioned documents, informed the Court of First Instance of Edessa and the company

1 Which are mentioned in the document No. ... of the Ministry.

2 Available on the Authority's website.

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Tiresias S.A. that after the entry into force of the GDPR, and consequently the establishment of the principle of accountability under Article 5 paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the principles of processing established in paragraph 1 of Article 5 of the GDPR, as well as the selection of the appropriate legal basis and the legality of the processing operations it carries out, in accordance with the provisions of the GDPR and national data protection law. Consequently, it was pointed out in the aforementioned documents that according to the GDPR (Articles 57 and 58), the Authority is no longer competent to license or approve the maintenance of records containing personal data, nor does it handle inquiries and requests, whether from data controllers or data subjects or third parties, regarding issues of personal data processing that do not fall within its competencies as provided by the provisions of the GDPR.

The issue of granting nominal information (non-anonymized court decisions), such as the contentious ones (payment orders, eviction orders, as well as decisions on bankruptcy/settlement/restructuring applications) must be examined from the perspective of delineating the Authority's competence under Articles 55 paragraph 3 of the GDPR and 10 paragraph 5 subparagraph a of Law 4624/2019, which introduce restrictions on the Authority's competence different from those provided under the previous law (Directive 95/46 and Law 2472/1997, Government Gazette A'50), which only concerned processing carried out within the framework of criminal proceedings (Article 3 paragraph 2 item b and 24 paragraph 5 of Law 2472/1997). This issue, due to its importance, must be examined by the Plenary of the Authority, in accordance with Article 4 paragraph 1 item i of the Authority's Operating Regulation (Government Gazette B'879, as amended and in force).

The Authority, after examining the elements of the file, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

3 See also the Authority's decisions No. 46/2018 and 52/2018, posted on its website.

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#### CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas, according to the provisions of Article 51 paragraph 1 of the General Data Protection Regulation (Regulation 2016/679): "Each Member State shall ensure that one or more independent public authorities are responsible for monitoring the application of this regulation, in order to protect the fundamental rights and freedoms of natural persons in relation to the processing of personal data and to facilitate the free movement of personal data within the Union ('supervisory authority')."

Subsequently, Article 55 of the GDPR provides: "1. Each supervisory authority shall be competent to perform the tasks and exercise the powers assigned to it in accordance with this regulation within the territory of its Member State. (...) 3. Supervisory authorities shall not be competent to monitor processing operations carried out by courts in the exercise of their judicial functions." In Recital 20 of the GDPR, it is explained: "While this regulation applies, inter alia, to the activities of courts and other judicial authorities, Union or Member State law could specify the acts and procedures of processing in relation to the processing of personal data by courts and other judicial authorities. The competence of supervisory authorities should not cover the processing of personal data when courts act in their judicial capacity, in order to ensure the independence of judicial officials in the exercise of their jurisdictional duties, including decision-making. Supervision of such processing operations should be able to be assigned to specialized bodies within the judicial system of the Member State, which should in particular ensure compliance with the rules of this regulation, to

4 Official Journal of the European Union L 74/35 of 04.03.2021 "Corrigendum to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural

persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation)."

5 See footnote 4.

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raises awareness among members of the judiciary regarding their obligations under this regulation and addresses complaints related to the aforementioned data processing procedures." A corresponding provision is included in Article 10, paragraph 5 of Law 4624/2019 (Government Gazette A' 137), which states: "The Authority is not competent to supervise acts of processing personal data carried out by judicial and prosecutorial authorities within the framework of their judicial function and duties, as well as acts of processing classified personal data carried out for activities concerning national security."

2. Whereas, Article 2 of the GDPR provides regarding the substantive scope of application: "1. This regulation applies to the wholly or partially automated processing of personal data, as well as to the non-automated processing of such data which are included or are intended to be included in a filing system. 2. This regulation does not apply to the processing of personal data: "(...) d) by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or executing criminal penalties, including the protection and prevention against risks threatening public security."

3. Whereas, Article 4, point 2 of the GDPR defines processing as: "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

4. Whereas, Article 5 of the GDPR establishes the principles of processing that govern the processing of personal data. Specifically, it is stated in paragraph 1 that personal data, among other things: "a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, transparency'), b) are collected for specified, explicit, and legitimate purposes and are not further processed in a manner that is incompatible with those purposes (...), c) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization') (...)."

5. Whereas, according to the provisions of Article 5, paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the processing principles established in paragraph 1 of Article 5. As the Authority has ruled, the GDPR adopted a new compliance model, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the additional duty to demonstrate at all times compliance with the principles of Article 5, paragraph 1 of the GDPR.

6. Whereas, Article 13 of Law 4938/2022 (Government Gazette A' 109, Code of Organization of Courts and Status of Judicial Officers and other provisions) provides regarding the information included, among other things, in the records of the courts: "1. The court or prosecutor's office file contains decisions, minutes, books, case files, evidence, and other official documents in physical or electronic form. In the event of the abolition of a court or prosecutor's office, its file is transferred to the court or prosecutor's office to which the territorial jurisdiction of the abolished court or prosecutor's office belongs (...)." Subsequently, the provision of Article 26 of the same law regulates the issue of granting copies as follows: "2. They have the right to access, obtain copies or excerpts, in printed or electronic form: a) of non-anonymized decisions and documents of any other proceedings, except for criminal ones, as well as decisions and opinions on administrative matters, the parties involved, while third parties only if they have a legitimate interest, at the discretion of the judge presiding over the court and under the additional terms of Law 4624/2019 (A' 137),

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b) of the documents of the criminal procedure, as defined by Article 147 of the Code of Criminal Procedure (ΚΠΔ)<sup>6</sup>.

8. Whereas, paragraph 2 of Article 42 of Law 4624/2019 titled "access of the public to documents" states: "The application of the provisions of Article 22 of the Code of Organization of Courts and Status of Judicial Officers (Law 1756/1988, A'35) remains unaffected."

9. Whereas, the granting of the contested judicial decisions (payment orders, orders for the return of leased property, as well as decisions on bankruptcy/settlement/restructuring applications), without the removal of personal identifiers (non-anonymized information), constitutes the processing of personal data, within the meaning of Article 2, paragraph 1 of the General Data Protection Regulation (GDPR), which consists of extracting this information from the court filing systems and providing copies of them.

10. Whereas, the Court of Justice of the European Union in case C-245/2020 X and Z v. Autoriteit Persoonsgegevens on 24.03.2022 interpreted the provision of Article 55, paragraph 3 and Recital 20 of the GDPR<sup>7</sup>, and accepted, among other things, that: "(...) 34. Therefore, the reference in Article 55, paragraph 3, of Regulation 2016/679 to the processing operations carried out by courts 'in the context of their jurisdiction' means, within the framework of this regulation, that it is not limited to the processing of personal data carried out by courts in the context of specific cases, but rather concerns, in general, all processing operations carried out by courts in the context of their jurisdictional activity, resulting in the exclusion from the competence of the supervisory authority of processing operations whose oversight by that authority could, directly or indirectly, affect the independence of judicial officers and weigh on their decisions. 35. In this regard, the nature and purpose of the processing carried out by a court, although primarily linked to the examination of the lawfulness of the processing, may nevertheless provide indications from which it can be inferred that the processing falls within the exercise, by that court, of its 'jurisdictional competence.' 36. Conversely, whether this processing is based on an explicit legal basis of domestic law or whether the personal data it contains can lawfully be disclosed to third parties are issues that are exclusively related to the examination of the lawfulness of the processing, as they do not influence the determination of whether the supervisory authority is competent to ensure oversight of this processing under Article 55 of Regulation 2016/679"<sup>8</sup>.

11. Whereas, from the entirety of the considerations mentioned above, it follows that the issue of granting copies of non-anonymized judicial decisions to third parties constitutes the processing of personal data falling under the protective scope of the GDPR, in application of Article 2, paragraph 1. Furthermore, the issue of compliance oversight with the framework of GDPR provisions during the processing of granting copies of non-anonymized judicial decisions falls within the concept of the jurisdictional capacity of the judicial authority, in accordance with the provisions of Articles 55, paragraph 3 of the GDPR and 10, paragraph 5, subparagraph a of Law 4624/2019, taking into account that with the provision of paragraph 2 of Article 26 of Law 4938/2022, the authority to grant non-anonymized judicial decisions, among others, to third parties (non-litigants) has been assigned to the Judge presiding over the Court.

12. 8 See also paragraph 26 of the CJEU decision C-245/20, as well as paragraphs 99 - 100 of the Advocate General Michal Bobek's Opinions in case C-245/20, as follows: "99. I do not imply at all that a balancing test is not required to assess whether the disclosure of documents is consistent with the right to the protection of personal data. Clearly, it is required, but only subsequently, when assessing whether the contested disclosure (which was carried out in the context of 'jurisdictional competence') was proportionate to the purpose it sought to achieve and whether, therefore, it was in accordance with the substantive provisions of the GDPR (59). 100. In summary, I propose that the term 'acting in the context of their jurisdictional competence,' which is included in Article 55, paragraph 3, of the GDPR, should be approached from an institutional perspective ('is it a court?'), which will then be corrected, possibly, by an operational assessment of the nature of the contested activity ('what specific type of activity is the court engaging in?'). In light of the purpose outlined in Recital 20 of the GDPR, in the latter assessment of activities, a broad interpretation of the concept of 'jurisdictional competence' should be applied, which extends beyond the mere rendering of a decision by a court in a specific case. It should also encompass all activities that may indirectly affect the independence of judicial officers. Therefore, it should generally be considered that courts act within the scope of their 'jurisdictional competence,' unless it is determined, with regard to a specific type of activity, that it has

an administrative character only.”

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Consequently, the Judge of the competent Court, when assessing the granting of the contested data, must, in accordance with the provision of paragraph 2 of Article 26 of Law 4938/2022, examine, among other things, whether the general principles of processing set out in paragraph 1 of Article 5 of the GDPR are met, as well as the other conditions arising from the GDPR (in particular Articles 6, 9, 12 – 14 of the GDPR), in accordance with the principle of accountability as applied in paragraph 2 of Article 5 of the GDPR. Ultimately, it is up to the Courts of the country to determine the entities within the judicial system responsible for ensuring the right to the protection of personal data in compliance with the requirements of the GDPR (recital 20 of the GDPR and Articles 51 and 55 of the GDPR).

#### FOR THESE REASONS

The Authority finds that the issue of granting copies (non-anonymized) of court decisions by the Courts of the country to collaborating lawyers of the company Teiresias S.A. constitutes processing of personal data, which is carried out within the framework of exercising authority in a judicial capacity and falls outside the supervisory jurisdiction of the Authority.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou